
2:00 PM **LINE 3**

24-CIV-04529

CHUNYU TAN VS YANG MIN YANG, ET AL

CHUNYU TAN
YANG MIN YANG

X YOUNG LAI
JONATHAN E. MADISON

MOTION FOR TERMINATING, ISSUE, EVIDENCE, AND MONETARY SANCTIONS RE: PLAINTIFF'S FORM INTERROGATORIES (SET ONE, NO. 2.2, 2.6-2.7, 15.1, 50.1, 50.3, AND 50.6)

TENTATIVE RULING:

Plaintiff Chunyu Tan's motion for terminating, issue, evidence, and monetary sanctions of \$4,000 regarding Defendant Yang Min Yang's responses to Plaintiff's Form Interrogatories, Set One, Nos. 2.2, 2.6, 2.7, 15.1, 50.1, 50.3, and 50.6., filed March 13, 2026, is **GRANTED in part**.

A. Service of the Motion

The court has questions about whether this Motion was properly served. On March 13, 2026, plaintiff served four separate discovery-related motions on defendant Yang Min Yang, all four of which are set for a hearing on August 5, 2026 (including this motion, which pertains to plaintiff's Form Interrogatories, Set One.) Plaintiff's March 18, 2026 Proof of Service is somewhat unclear as to whether the moving papers were served on defendant's counsel, Jonathan Madison, at the proper email address. (The Proof of Service states that the moving papers were served by email to "jmadison@themadisonfirm" rather than "jmadison@themadisonfirm.com.")

Counsel for plaintiff and defendant are **ORDERED TO APPEAR** by Zoom at the hearing on August 5, 2026 at 2:00 p.m. in Department 28, Courtroom I. Plaintiff's counsel must supply an explanation to the court regarding service. Assuming the court is satisfied that service was accomplished, the court tentatively rules as follows.

B. Background

Plaintiff Chunyu Tan's August 26, 2024 First Amended Complaint (FAC) alleges that in 2022, plaintiff loaned \$500,000 to defendants Yang Min Yang and Che Ping Tam pursuant to a Promissory Note calling for annual interest of 12%. The loan allegedly was secured by a Deed of Trust on real property located in San Francisco that was owned by defendants Yang and Tam. The FAC alleges that at the time of the 2002 loan, defendants concealed their precarious financial status and the fact that their San Francisco property, which secured the loan, had a superior lien. The first lienholder allegedly later foreclosed on the San Francisco property and plaintiff lost her security interest in the \$500,000 loan. Plaintiff alleges that defendants still owe \$505,000 on the Note, plus interest and other fees and charges.

As of December 2025, defendants Che Ping Tam and Y & W Investment LLC had defaulted, leaving Yang Min Yang as the only remaining active defendant.

The FAC asserts causes of action for (1) breach of contract, that is, breach of the Promissory Note; (2) fraud as to the alleged concealment of the first lien on the San Francisco property; (3) fraudulent transfer; and (4) conspiracy.

Plaintiff filed the instant motion requesting every category of sanction authorized by the Civil Discovery Act but contempt. (See Code Civ. Proc., §§ 2023.030, 2031.300, subd. (c)) based on Yang's responses to plaintiff's Form Interrogatories, Set One, Nos. 2.2, 2.6-2.7, 15.1, 50.1, 50.3, and 50.6. The motion is unopposed. As discussed above, the court notes the proof of service filed does not demonstrate service upon defendant's service address of record thus service was incomplete.

C. Law Governing Discovery Misuse

"It is a central precept to the Civil Discovery Act of 1986 (§ 2016 et seq.) ... that civil discovery be essentially self-executing." (*Townsend v. Superior Court* (1998) 61 Cal.App.4th 1431, 1434.) The goal of a self-executing discovery system is stymied when it requires the trial court to become involved in discovery because a dispute leads a party to move for an order compelling a response. (*Clement v. Alegre* (2009) 177 Cal.App.4th 1277, 1291.) Parties are reminded that "a reasonable and good faith attempt at informal resolution entails something more than bickering with [opposing] counsel.... Rather, the law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate." (*Id.*, at p. 1294.)

Code of Civil Procedure, section 2023.030 provides that, to the extent authorized by any particular discovery method, the court may impose monetary, issue, evidence, or terminating sanctions. Code of Civil Procedure, sections 2030.300, subdivision (e) and 2031.310, subdivision (i) state that if a party fails to obey an order compelling further responses, the court may make those orders that are just, including the imposition of an issue, evidence, or terminating sanction.

Whether to grant a sanction is entirely within the discretion of the court. (Weil & Brown § 8:1207; *Pember v. Superior Court* (1967) 66 Cal.2d 601, 604.) Trial courts have broad discretion regarding whether to impose sanctions and which sanctions to impose. (*Cornerstone Realty Advisors, LLC v. Summit Healthcare REIT, Inc.* (2020) 56 Cal.App.5th 771, 789.) The court's choice of sanctions is reviewable only for abuse of discretion. (*Sauer v. Superior Court* (1987) 195 Cal.App.3d 213; Code Civ. Proc., §§ 2023.010; 2023.030 [describing "misuses of the discovery process", which include "[f]ailing to respond or to submit to an authorized method of discovery" and "[d]isobeying a court order to provide discovery."], section 2023.010, subdivisions (d), (g).)

The court's decision on a request for sanctions should reflect the purpose of discovery sanctions which is to enable the party seeking the discovery to obtain the information sought, not to punish a disobedient party. (*Ghanooni v. Super Shuttle of Los Angeles* (1993) 20 Cal.App.4th 256, 262.)

Lesser sanctions should usually be granted before imposing terminating sanctions. (*Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771.) Terminating sanctions for discovery abuses are to be used sparingly because of the drastic effect of their application. (*Dept. of Forestry and Fire Protection v. Howell* (2017) 18 Cal.App.5th 154, 191.) Terminating sanctions are authorized where the evidence shows that less severe sanctions will not succeed in compelling discovery responses. (*Mileikowsky v. Tenet Healthsystem* (2005) 128 Cal.App.4th 262, 279-280.)

Typically, a party's disobedience of an order compelling discovery must come before an order imposing terminating sanctions. (*Kravitz v. Superior Court* (2001) 91 Cal.App.4th 1015, 1021.) A court does not abuse its discretion in ordering termination sanctions against a party that has "persisted in its pattern of failure or refusal to give meaningful responses to discovery." (*Liberty Mutual Fire Ins. Co. v. LcL Administrators, Inc.* (2008) 163 Cal.App.4th 1093, 1106.)

D. Discussion

In addition to the delay in prosecution she has suffered, plaintiff contends she is prejudiced because the responses to Form Interrogatories Nos. 2.2, 2.6-2.7, 15.1, 50.1, 50.3, and 50.6 are incomplete. Plaintiff states that "the information is presumptively within defendant's knowledge, but either he intentionally withheld the information or failed to make a reasonable effort to obtain it." (Opp., at p. 3.)

A review of the Separate Statement in support of the Motion demonstrates that the answers are indeed incomplete. For example, in response to FROG No. 15.1(a) which demands that Yang "state all facts upon which you base the denial or special or affirmative defense," defendant responded "The facts set forth in Responding Party's Answer to the Complaint in this matter are clear on the basis for denial and/or Special Affirmative Defenses." There are no facts alleged in Yang's answer, filed on December 4, 2024, nor has he pled any facts to support his affirmative defenses. In his supplemental response defendant stated: "(a) Defendant denies liability as alleged. Defendant did not engage in wrongdoing of any kind. Defendant's understanding is that Plaintiff's claims arise from contractual disputes involving other parties, and Defendant disputes the allegations. Discovery is ongoing." That response supplies no facts, nor supports Yang's affirmative defenses.

In response to FROG No. 15.1(b), defendant offered only the name of Che Ping Tam. In response to FROG No. 15.1(c) Yang has not identified any documents supporting his denials or affirmative defenses other than the "loan documents, escrow documents, and [unspecified] related transactional documents." In response to FROG No. 50.3, which required him to "identify each agreement excused and state why performance was excused," Yang responded "Defendant contends that performance was excused, in part, due to Plaintiff's own conduct and actions by other parties to the transaction. Discovery is ongoing." Defendant failed to explain his answer. Further, when asked (in FROG No. 50.6) if "any agreement alleged in the pleadings ambiguous? If so, identify each ambiguous agreement and state why it is ambiguous," defendant did not supply any substantive explanation but stated in his supplemental response that "The alleged agreements are ambiguous. Discovery is ongoing."

Defendant's responses are wholly inadequate, long overdue, and not code-compliant. The court therefore **ORDERS** the following evidentiary sanctions:

- Defendant Yang Min Yang is precluded from offering any facts in further support of his response to FROGs 15.1(a) or (b), or documents in response to FROG 15.1(c);
- Defendant Yang Min Yang is precluded from offering any facts in further support of his response to FROG 50.3;
- Defendant Yang Min Yang is precluded from offering any facts in further support of his response to FROG 50.6;

As to plaintiff's request for monetary sanctions against defendant yang and his counsel, the court agrees with plaintiff that failure to respond or engage in an "authorized method of discovery" and "disobeying a court order to provide discovery," or failing to do either in timely fashion, are misuses of the discovery process. (Code Civ. Proc., § 2023.010, subds. (d), (g).) Monetary sanctions are intended to compensate a party for "the reasonable expenses, including attorney's fees, incurred by anyone as a result of" a misuse of discovery. (*Id.*, § 2023.030, subd. (a).)

The court grants in part the request for monetary sanctions. The court credits plaintiff for five hours of attorney time at \$500/hour ($5 \times \$500 = \$2,500$). (See Lai Decl., ¶ 14(a).) The court is reducing the requested time because there is no opposition for plaintiff's counsel to review, and the four motions are substantially similar. Accordingly, plaintiff's motion for monetary sanctions against defendant Yang Min Yang and his counsel of record is **GRANTED** in the amount of \$2,500, which shall be paid within thirty (30) days of notice of entry of this Order.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, plaintiff's counsel shall prepare a written order consistent with this ruling for the Court's signature, pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court. The order should be e-filed only, do not email or mail a hard copy to the Court.

2:00 PM **LINE 4**

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CHUNYU TAN
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JONATHAN E. MADISON

MOTION FOR TERMINATING, ISSUE, EVIDENCE, AND MONETARY SANCTIONS RE: PLAINTIFF'S SPECIAL INTERROGATORIES (SET ONE, NO. 1-12)

TENTATIVE RULING:

For the reasons stated below, plaintiff Chunyu Tan's "Motion for Terminating, Issue, Evidence, and Monetary Sanctions Re: Plaintiff's Special Interrogatories (Set One, No. 1-12)," filed March 13, 2026, is **GRANTED-in-part**. (Code Civ. Proc. § 2023.010 et. seq. [discovery misuse].)

A. Service of the Motion

The court has questions about whether this Motion was properly served. On March 13, 2026, plaintiff served four separate discovery-related motions on defendant Yang Min Yang, all four of which are set for a hearing on August 5, 2026 (including this motion, which pertains to plaintiff's Special Interrogatories, Set One.) Plaintiff's March 18, 2026 Proof of Service is somewhat unclear as to whether the moving papers were served on defendant's counsel, Jonathan Madison, at the proper email address. (The Proof of Service states that the moving papers were served by email to "jmadison@themadisonfirm" rather than "jmadison@themadisonfirm.com.")

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